

25AVCV00599 25AVCV00599

County: los-angeles

Division: Civil Law and Motion

Department: A14

Hearing date: 2026-07-28

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Case Number: 25AVCV00599 Hearing Date: July 28, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

JEISY ARAGON, an individual; and JEISY ARAGON TERAN, an individual,

Plaintiffs,

v.

NISSAN NORTH AMERICA, INC., a

Delaware Corporation, and ANTELOPE

VALLEY NISSAN, INC., a California

Corporation d/b/a ANTELOPE VALLEY

VOLKSWAGEN, and DOES 1 through 10,

inclusive,

Defendants.

Case Number 25AVCV00599

[TENTATIVE]

ORDER ON MOTION

Date of Hearing: July 28, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a Song-Beverly action arising from Plaintiffs Jeisy Aragon and Jeisy Aragon Teran's (Plaintiffs) purchase of a vehicle manufactured by Defendant Nissan North America, Inc. (Nissan) and purchased from Antelope Valley Nissan, Inc. (AVN) (together Defendants). Nissan moves for an order compelling the Plaintiffs' depositions.

On May 8, 2025, Plaintiffs filed a complaint against Defendants, asserting four causes of action for (1) violation of Song-Beverly Act for breach of express warranty, (2) violation of Song-Beverly Act for breach of implied warranty, (3) violation of the Song-Beverly Act section 1793.2, and (4) negligent repair.

Specifically, Plaintiffs allege they purchased a 2024 Nissan Sentra (Vehicle) on May 25, 2024, which was warranted by Nissan. (Compl., ¶¶ 9-10.) Plaintiffs claim the Vehicle was delivered with serious defects and nonconformities to warranty and that other defects and nonconformities developed after delivery and within the applicable warranty period. (Compl., ¶¶ 11, 26.) Plaintiffs allege that they delivered the vehicle to an authorized repair facility, but Defendants were unable to conform the Vehicle to the warranty after a reasonable number of repair attempts and failed to issue a refund or replace the Vehicle in violation of the Song-Beverly Act. (Compl., ¶¶ 28-29.)

On May 29, 2025, AVN filed its answer.

On June 20, 2025, Nissan filed its answer.

On June 29, 2026, Nissan filed the present motion to compel the depositions of Plaintiffs.

On July 15, 2026, Plaintiffs filed their opposition.

No reply has been filed.

II. Legal Standard

Standard for Compelling Deposition of a Party – Any party may obtain discovery, subject to restrictions, by taking the oral deposition of any person, including any party to the action. (Code of Civ. Proc., § 2025.010.) A properly served deposition notice is effective to require a party or party-affiliated deponent to attend and to testify, as well as to produce documents for inspection and copying. (Code of Civ. Proc., § 2025.280, subd. (a).)

"If, after service of a deposition notice, a party to the action . . . , without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document . . . described in the deposition notice, the party giving notice may move for an order compelling deponent's attendance and testimony, and the production . . . of any document . . . described in the deposition notice." (Code of Civ. Proc., § 2025.450, subd. (a).) The motion must set forth facts showing both good cause justifying the demand for any documents and a meet and confer declaration. (Code of Civ. Proc., § 2025.450, subds. (b)(1), (b)(2).)

The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Code Civ. Proc., § 2025.450 subd. (b)(2).)

III. Discussion

Application – Pursuant to California Code of Civil Procedure sections 2023.010 and 2023.310, Nissan moves to compel Plaintiffs' depositions on the ground that Plaintiffs have continuously failed to provide alternative dates for depositions despite Nissan's meet and confer efforts. (Motion, p. 2:1-3.)

a. Meet and Confer

Nissan provides the Declaration of Kathryn Haselberger, counsel for Defendants. Haselberger declares she attempted to meet and confer regarding available dates to take Plaintiffs' depositions on June 18 and 26, 2026, but that Plaintiff has not provided any dates of availability. (Haselberger Decl., ¶ 3, Ex. C.) This is sufficient to satisfy the meet and confer requirement.

b. Motion to Compel

On June 8, 2026, Nissan served demands for depositions of Plaintiffs unilaterally set for June 25, 2026. (Motion, p. 3:12; Haselberger Decl., Ex. A.) Plaintiffs objected on the ground that Plaintiffs were unavailable that date and requested that Defense counsel meet and confer with Plaintiffs' counsel to schedule a mutually agreed upon deposition date, but did not provide any alternate dates of availability, and to date. (Motion, p. 3:13-14; Haselberger Decl., Ex. B.) On June 18, 2026, Defense counsel emailed Plaintiffs' counsel requesting dates for availability, though Plaintiffs' counsel did not respond. (Haselberger Decl., Ex. C.) Defense counsel again reached out on June 29, 2026 requesting dates of availability before filing the present motion. (Ibid.)

The Court notes that trial in this matter is set for August 28, 2026. Nissan argues that in light of this impending trial date, it will be substantially prejudiced if Plaintiffs are not ordered to appear as it will be unable to defend this action or prepare for trial. (Motion, p. 4:11-12.)

In opposition, Plaintiffs argue that Plaintiffs have never indicated unwillingness to appear, acknowledge Defendants' right to depose them, remain willing to appear, and the record establishes that discovery has continued to move forward, with depositions and vehicle inspection scheduled for the end of July. (Opp., p. 3:2-9.) Plaintiffs also assert that on July 15, 2026, they indicated willingness and availability to appear on July 29, 2026 at 10:00 a.m. (Opp., p. 3:11-14, Kim Decl., ¶ 6.)

While Plaintiffs argue they have never been unwilling to provide Nissan with a date for rescheduling the depositions, it appears no response was given and no date proposed by Plaintiff prior to July 15, 2026, and that Nissan engaged in good faith efforts to reschedule the deposition amongst counsel. Implicit in the requirement that counsel contact the deponent to

inquire about the nonappearance is a requirement that counsel listen to the reasons offered and make a good faith attempt to resolve the issue. (*Leko v. Cornerstone Building Inspection Service*, (2001) 86 Cal.App.4th 1109, 1124.) Here, upon receiving Plaintiffs' objections to the deposition notices, in which Plaintiffs stated their unavailability on the noticed date, Nissan promptly attempted to resolve the issues by emailing Plaintiffs' counsel on two occasions requesting dates for Plaintiffs' availability. Nissan engaged in a good faith effort to resolve the dispute with Plaintiffs' counsel to no avail.

The Court also finds that there is good cause to compel Plaintiffs' depositions. Here, Plaintiffs timely and properly objected to the noticed deposition. While Plaintiffs have now provided alternative dates and the parties appear to be actively engaged in efforts to reschedule the depositions of Plaintiffs, the Court does not agree with Plaintiffs that the deposition dispute has been resolved, as Plaintiffs' depositions appear to have not been rescheduled. Furthermore, the Court notes that the fact discovery cutoff in the present case is July 29, 2026 and a trial date has been set in this case for August 28, 2026. Given the impending cutoff for fact discovery in this case, there is a substantial risk of prejudice to Nissan if Plaintiffs' depositions are not timely rescheduled.

Therefore, Nissan's motion to compel Plaintiffs' depositions is GRANTED. As no sanctions were requested, the Court declines to impose sanctions against any party in connection with this motion.

IV. Conclusion

Defendant Nissan North America, Inc.'s Motion to Compel Plaintiffs' Depositions is GRANTED.